

14 H. 8. 16. a. But if one be indicted before justices of peace, and confesses the felony, and has a coroner, and becomes an approver, and makes an appeal, such appeal before the King was adjudged void, as appears in (d) 9 H. 4. 1. b. & (e) 2 H. 4. 19. a. *Vide* 44 E. 3. 44. a. b. and the reason of that case (as some suppose) is, because the commission of peace extends only *ad inquirendum* (sc. to enquire before themselves) *audiendum et terminandum*; and so the appeal of the approver is out of (f) their commission, because the approver doth not make his appeal before the justices, but before the coroner, and the coroner records it to the Court. But the reason which is given in (g) 9 H. 4. 1. b. is, that the justices of the peace have no power to assign him a coroner, no more than they can enquire of treason, as it is there also held, because it is not within their commission. So where the (h) sheriff who is prescribed by the lord to hold his turn within the month after Michaelmas, &c. holds his turn after the month, and takes an indictment of robbery at the same turn, and the indictment is by *certiorari* removed into the King's Bench, by the advice of all the justices the party so indicted was discharged, because the indictment was utterly void, and *coram non iudice*, forasmuch as at that time the sheriff had not authority to hold the Court. And it was said by the justices, that if a man has a leet which has been held at a certain day, if he holds it at another day, that such court so held is void, and without warrant; and otherwise it is of a court [77 a] baron. But if the Court of Common Pleas holds plea in debt, trespass, &c. without an original, it is not void, for they are Judges of those pleas, and it cannot be said that the proceeding is *coram non iudice*: and therewith agrees (i) 19 E. 4. 8. b. and therewith in the point agrees the said book in (k) 6 R. 2. that judgment in the Marshalsea, when (l) none of the parties is of the King's Household, may be avoided by plea (m) without any writ of error, which proves that it is void. *Vide* 20 E. 4. 16. b. 22 E. 4. 13. 31. & 10 H. 6. 13. a. It is agreed in the point also, that in trespass before the Steward and Marshal, if none of the parties be of the King's Household, there it is *coram non iudice*, because they exceed their power. The same law, if they hold plea out of the verge, as it is held in Plo. Com. *Plat's case*, 37. b. and that agrees with the rule, *extra territorium jus dicendi non paretur impune*. *Vide* 22 Ass. 64. Plo. Com. 394. b. 37 Ass. p. 17. 39 E. 3. 33, 34. 39 Ass. p. 6. 7 H. 4. 27. 11 H. 4. 36. 36 H. 6. 32. 22 E. 4. 32. 1 R. 3. 1. 2 R. 3. 2. 5 H. 7. 17. b. 9 H. 7. 12. 21 E. 3. Barre 271. 3 Mar. (a) Dy. 135. And with this difference all the books were well reconciled. And as to the said case of (b) 7 E. 3. 23. b. 24. a. by the common law it belongs to the office of the Marshal to protect the Court from whores, as appears in Fleta, lib. 2. c. 5. (c) *Mareschalli interest virgatam a meretricibus omnibus protegere & deliberare, & habet Mareschal' ex consuetudine pro qualibet meretrice communi infra metas hospitii inventa 4d. primo die, que si iterum in ballivâ suâ inveniat', capiatur, & cor' Seneschal' inhibeant' ei hospitium Regis reg' & liberor' suor', ne iterum ingrediatur, & nomina ear' imbrevient', que si iterum inventæ fuerint hospit' secutrices, tunc aut remaneant in prisonâ in vinculis, aut sponte præd' hospit' abjurent, que si autem tertio inventæ fuerint, considerabitur quod amputetur eis*

in pleading, and the plea should not amount to a justification for both; being bad in part, it is bad for the whole, and consequently judgment will be given against him. *Hedges v. Chapman*, 2 Bing. 523.

(d) 3 Inst. 130. Fitz. Corone 77. Br. Appeal 28. Br. Corone 25.

(e) Fitz. Justice of Peace 5. Br. Peace 1. Br. Appeal 18.

(f) 3 Inst. 130. Ha. pl. Cor. 194.

(g) *Supra*.

(h) 31 E. 3. c. 15. Stam. Cor. 84. a. b. 6 H. 7. 2. a. Br. Indictment 27. 99. Br. Leet 17. 21. 38 H. 6, 7. a. Fitz. Tourn de Viscount 2. 6. Fitz. Indictment 14. Fitz. Leets Hundred 2.

(i) 6 Co. 20. b.

(k) Br. Action. sur le Stat. 49. *Antea* 75. a.

(l) F. N. B. 241.

(m) *Contr. plac.* 277.

(a) Dyer. 135. pl. 14. 11 Co. 64. b. 2 Roll. Rep. 100.

(b) *Antea* 70. b.

(c) 3 Inst. 205.